

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Arthur Albano	Team: Squad #04	CCRB Case #: 201510860	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 12/14/2015 5:15 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/14/2017	Precinct: 105		
Date/Time CV Reported Wed, 12/23/2015 7:45 PM	CV Reported At: Other City agency	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 12/28/2015 8:59 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Richard Tarver	23842	943860	105 PCT
2. POM Brandon McNally	28587	957841	105 PCT
3. POM Nestor Martinez	02252	949269	105 PCT
4. SGT Marianne Mikowski	00878	925189	105 PCT
5. POM Matthew Levy	24321	943481	105 PCT
6. POM Paul Piccininni	17164	924339	105 DET
7. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM John Hewitt	00676	941901	105 PCT
2. SGT James Reilly	4143	937350	105 PCT
3. POM Joseph Pennisi	01611	949464	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Richard Tarver	Abuse: Police Officer Richard Tarver entered and searched § 87(2)(b) in Queens.	A . Unsubstantiated
B . POM Brandon McNally	Abuse: Police Officer Brandon McNally entered and searched § 87(2)(b) in Queens.	B . Unsubstantiated
C . POM Richard Tarver	Force: Police Officer Richard Tarver used physical force against § 87(2)(b)	C . Unsubstantiated
D . POM Brandon McNally	Force: Police Officer Brandon McNally used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM Richard Tarver	Force: Police Officer Richard Tarver used physical force against § 87(2)(b)	E . Exonerated
F . POM Brandon McNally	Force: Police Officer Brandon McNally used physical force against § 87(2)(b)	F . Exonerated
G . POM Nestor Martinez	Force: Police Officer Nestor Martinez used physical force against § 87(2)(b)	G . Exonerated
H . POM Matthew Levy	Force: Police Officer Matthew Levy used physical force against § 87(2)(b)	H . Exonerated

Officer(s)	Allegation	Investigator Recommendation
I . POM Matthew Levy	Discourtesy: Police Officer Matthew Levy spoke discourteously to § 87(2)(b)	I . Exonerated
J . SGT Marianne Mikowski	Force: Sergeant Marianne Mikowski used pepper spray against § 87(2)(b)	J . Exonerated
K . POM Paul Piccininni	Force: Police Officer Paul Piccininni used physical force against § 87(2)(b)	K . Exonerated
L . POM Paul Piccininni	Discourtesy: Police Officer Paul Piccininni spoke discourteously to § 87(2)(b)	L . Exonerated
M . An officer	Force: An officer restricted § 87(2)(b)'s breathing.	M . Officer(s) Unidentified
N . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	N . Officer(s) Unidentified
O . An officer	Force: An officer hit § 87(2)(b)'s head against the ground.	O . Officer(s) Unidentified

Case Summary

On December 14, 2015, at approximately 5:15 p.m. § 87(2)(b) was walking his dog around his neighborhood without a leash when PO Tarver and PO McNally, of the 105th Precinct, approached him and asked him for identification, in order to issue him a summons.

§ 87(2)(b) told the officers that his identification was inside his house and he entered § 87(2)(b) and shut the door behind him. Within twenty to thirty seconds of § 87(2)(b) closing his front door, the officers repeatedly rang § 87(2)(b)'s doorbell.

§ 87(2)(b) s grandfather, § 87(2)(b) opened the front door and spoke with the officers while § 87(2)(b) continued to search for his identification. When § 87(2)(b) stated that his identification was in his hand, PO Tarver and PO McNally forcefully pushed past the front door and § 87(2)(b) consequently knocking § 87(2)(b) backwards, causing him to be pinned between the wall and the front door (**Allegations A-D**).

The officers then ran inside § 87(2)(b)'s bedroom and grabbed § 87(2)(b) (Allegations E and F). PO Tarver and PO McNally wrestled with § 87(2)(b) while § 87(2)(b) attempted to escape and evade the officers. The struggle lasted a few minutes and moved from the bedroom to the hallway stairs.

PO Nestor Martinez, PO Matthew Levy, Sgt. Marianne Mikowski, of the 105th Precinct and PO Paul Piccininni of the 105th Precinct Detective squad all responded and assisted in restraining § 87(2)(b). PO Nestor Martinez struck § 87(2)(b) in the side of the the head with his forearm four times (**Allegation G**). PO Matthew Levy pulled at § 87(2)(b)'s hair and allegedly stated, "Keep macing that motherfucker" (**Allegation H and I**). Sgt. Marianne Mikowski pepper sprayed § 87(2)(b) (**Allegation J**). PO Paul Piccininni struck § 87(2)(b) in the face and other places in his body with a closed fist while he stated "Motherfucker, put your hands behind your back," (**Allegation K and L**). Eventually, the officers collectively restrained and handcuffed § 87(2)(b) and walked him outside.

§ 87(2)(b) could not see who escorted him out, or if one or multiple officers took part in escorting him out of his house. § 87(2)(b) lost his footing and fell face first onto the sidewalk, near the street. § 87(2)(b) then felt pressure being exerted between his shoulder blades which he believed to be an unidentified officers' weight being applied to that area. § 87(2)(b) could not breathe from this pressure to his back and told the officer, "I can't breathe," numerous times (**Allegation M**).

An officer, whom § 87(2)(b) could not see, grabbed § 87(2)(b)'s hair and slammed § 87(2)(b)'s head against the ground four or five times, while stating, "Stop fucking around." An officer continued to slam § 87(2)(b)'s head against the ground, approximately 20 times (**Allegations N and O**).

§ 87(2)(b) was then taken by EMS to § 87(2)(b), in NYPD custody. § 87(2)(b) was later arraigned and charged with § 87(2)(a) 160.50

(b) § 87(2)(g)

(c) § 87(2)(d)

statement was obtained five weeks after the CCRB received the case and his girlfriend, § 87(2)(b) statement was obtained three weeks after § 87(2)(b)'s statement.

§ 87(2)(g)

Video Footage

In brief, § 87(2)(b)'s girlfriend, § 87(2)(b) started recording the incident once the officers attempted to physically subdue § 87(2)(b) (Board Review 02). The video is seven minutes and fifty-eight seconds long and clips are located in the relevant analysis sections below.

Mediation, Civil and Criminal Histories

- Due to § 87(2)(b)'s reported injuries and his arrest, this case was unsuitable for mediation.
- § 87(2)(b) filed a notice of claim against the City of New York on § 87(2)(b) claiming assault, battery, false arrest, malicious prosecution, illegal search and seizure, intention and negligent infliction of emotional harm/distress, pima facie tort, abuse of process, violation of Federal Statutory and Constitutional rights including violation of Fourth, Fifth, Ninth, and Thirteenth, and Fourteenth amendments to the U.S. Constitution and 42 U.S.C. Sections 1983, 1985, 1982, 1988, Article I of the New York State Constitution and New York State statutes enacted to affect the rights protected thereunder, and seeking compensatory damages of \$5,000,000 and punitive damages of \$10,000,000 in redress (Board Review 03). A 50-H hearing is scheduled for § 87(2)(a) Gen Mun 550.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by, or including § 87(2)(b) or § 87(2)(b).
- PO Richard Tarver has been a member of the service for nine years. Four prior CCRB complaints have been filed against him containing six allegations, one of which was substantiated. In CCRB case #201007008 a search of person allegation was substantiated. The CCRB recommended instructions and the NYPD ultimately administered a penalty of instruction. PO Tarver has two prior CCRB complaints regarding excessive force, neither of which was substantiated.
- PO Brandon McNally has been a member of the service for one year and this is the first CCRB complaint filed against him.
- PO Nestor Martinez has been a member of the service for five years. Three prior CCRB complaints have been filed against him, containing four allegations, none of which have

been substantiated. In CCRB case #201408916 other misconduct was noted for providing a false official statement, § 87(2)(g), § 87(4-b)

PO Martinez has one prior CCRB complaint regarding excessive force, which was exonerated.

- Sgt. Marianne Mikowski has been a member of the service for 16 years. Three prior complaints have been filed against her, containing five allegations, none of which were substantiated. Sgt. Mikowski has one prior CCRB complaint regarding excessive force, which was exonerated.
 - PO Matthew Levy has been a member of the service for nine years. Three prior complaints have been filed against him, containing eight allegations, three of which have been substantiated. In CCRB case number 201508966, two stop allegations, and one frisk allegation were substantiated. § 87(2)(g), § 87(4-b)
- The CCRB recommended Command Discipline A for the substantiated allegations, and the case is pending an NYPD disposition. He has one prior complaint regarding discourtesy, which was withdrawn, and no prior complaints regarding excessive force.
- PO Paul Piccininni has been a member of the service for 16 years. Nine prior complaints have been filed against him, containing 18 allegations, none of which have been substantiated. PO Piccininni has four prior complaints regarding force and five regarding discourtesy, none of which were substantiated.

Potential Issues

- On December 20, 2016, the undersigned investigator went to § 87(2)(b) and met § 87(2)(b). § 87(2)(b) stated that he did not want to speak about the incident, and a business card was left with him to contact the CCRB if he wanted to provide a statement. After interviewing § 87(2)(b) and § 87(2)(b) with their attorney § 87(2)(b), § 87(2)(b) stated that § 87(2)(b) did not wish to provide a statement to the CCRB. He also indicated that § 87(2)(b) chose not to be involved with the civil lawsuit regarding this incident. § 87(2)(g), § 87(2)(b)

LexisNexis and Clear database searches found no contact information for § 87(2)(b). Multiple attempts were made to contact § 87(2)(b) for further contact information for § 87(2)(b) but every time the undersigned called the office, his paralegal stated that he was out of the office. Messages were left with his paralegal to call back, but he failed to do so.

- § 87(2)(b) refused to sign HIPAA release forms for the CCRB to obtain his medical records. He indicated that he sustained inflammation to his shoulder and elbow as a result of the struggle inside his residence. He also sustained a cut above his eyebrow with regards to the alleged force that occurred outside of the residence (Allegation O).

§ 87(2)(b)

Findings and Recommendations

Explanation of Subject Officer Identification

During her CCRB statement, Sgt. Mikowski (Board Review 10) identified the voice of the officer that stated, “Fucking mace that guy,” and “Get the fuck up,” as PO Matthew Levy. PO Levy admitted to making some comment about mace, but was unable to identify his voice or any of the other voices heard in the video. § 87(2)(g)

§ 87(2)(b) alleged that after falling while he was being escorted to an ambulance, an officer placed pressure on his back, restricting his breathing, and stated “Stop fucking around.” § 87(2)(b)'s head was then allegedly slammed on the ground twenty times. Because he alleged the officer was behind him when this happened, and that his eyes were affected by the pepper spray, he could not provide any identifying information about the subject(s).

§ 87(2)(b) and all of the officers interviewed for this case denied observing these actions by the officers, or seeing § 87(2)(b) on the ground. All of the officers interviewed also denied being the officer that escorted § 87(2)(b) to the ambulance.

§ 87(2)(g)

Allegation Not Pleaded

§ 87(2)(g)

Allegation A – Abuse of Authority- Police Officer Richard Tarver entered and searched

§ 87(2)(b) in Queens.

Allegation B- Abuse of Authority- Police Officer Brandon McNally entered and searched

§ 87(2)(b) in Queens.

It is undisputed that PO Tarver and PO McNally requested § 87(2)(b)'s identification to issue him a summons for walking his dog without a leash in public. It is undisputed § 87(2)(b) told the officers that he was going to get his identification from inside his house, and walked into his house alone, closing his door. After approximately 30 seconds, PO Tarver began to repeatedly ring § 87(2)(b)'s doorbell until § 87(2)(b) answered the door. § 87(2)(g)

According to § 87(2)(b) (Board Review 04), once § 87(2)(b) opened the door, he stated to PO Tarver and PO McNally, “This is my grandson, he lives here.” PO Tarver then stated that he needed § 87(2)(b)'s ID and § 87(2)(b) hearing this, stated that he had his ID in his hand. Then suddenly, without any additional provocation, PO Tarver and PO McNally forcefully entered the home, causing § 87(2)(b) to be pinned between the front door and the wall.

According to § 87(2)(b) (Board Review 05), she was inside § 87(2)(b)'s bedroom, but had a view of the front door from her position. § 87(2)(b) did not say anything to the officers because he does not speak English, and § 87(2)(b) from his bedroom explained in Haitian Creole that the officers were harassing him and wanted his ID. § 87(2)(b) exited his bedroom briefly and told the officers that they were not allowed in his house, and then returned to search for his identification. While he was still searching, the officers forcefully entered, causing § 87(2)(b) to fall backwards and the back of § 87(2)(b)'s head to hit the hallway wall, behind the door.

§ 87(2)(b) did not provide a statement to the CCRB. Additionally, the video footage for this incident begins after the entry occurs.

PO Tarver (Board Review 06) stated that once § 87(2)(b) opened the front door, PO Tarver explained to § 87(2)(b) that they needed § 87(2)(b)'s identification so they could issue him a summons. § 87(2)(b) then began yelling at § 87(2)(b) to give the officers his identification. § 87(2)(b) then appeared from his bedroom and began taunting the officers with his identification in hand. He stated to them "I'm not giving you shit" and then repeatedly held out the identification in front of PO Tarver's face, and then pulled it away. When he placed the identification in his face, § 87(2)(b)'s hand crossed the threshold of the doorway so part of § 87(2)(b)'s arm was outside of his house. Both officers were consistent that while § 87(2)(b) was taunting them, PO Tarver grabbed § 87(2)(b) by the forearm. PO Tarver stated when he initiated physical contact, he did not cross the threshold of the doorway. PO McNally, who said that he was a little behind and to the left of PO Tarver (Board Review 07), stated that he could not see exactly where physical contact was made, or if PO Tarver crossed the threshold. Both officers were consistent that § 87(2)(b) in reaction to this contact, pulled his arms back towards his chest, causing PO Tarver to be pulled completely into § 87(2)(b)'s house. PO Tarver stated that he did not intend to enter § 87(2)(b)'s house, but remained inside to then affect an arrest of § 87(2)(b) as they continued to struggle. PO McNally entered solely to assist PO Tarver during the physical struggle.

Entries into a home are presumptively unreasonable. The Fourth Amendment has drawn a firm line at the entrance of the house. Absent exigent circumstances, that threshold may not be reasonably crossed without a warrant. Payton v. New York 445 U.S. 573 (1980).

The Fourth Amendment addresses "misuse of power" not the accidental effects of otherwise lawful government conduct. Brower v. County of Inyo, 489 U.S. 593, 109 S. Ct. 1378, 103 L. Ed. 2d 628 (1989) (Board Review 12).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation C- Force- Police Officer Richard Tarver used physical force against § 87(2)(b)

Allegation D- Force- Police Officer Brandon McNally used physical force against § 87(2)(b)

§ 87(2)(b) alleged that as officers forcefully entered his home, § 87(2)(b) was pushed aside and his back struck the wall, causing a dent to form in the wall. § 87(2)(b) stated that he was unsure if PO McNally and PO Tarver made direct physical contact with § 87(2)(b) or if the door hit § 87(2)(b) in the process of the officers' entry. § 87(2)(b) corroborated that § 87(2)(b) hit the wall as the officers' were entering, but she was also unsure of the specific physical force that caused § 87(2)(b) to hit the wall. § 87(2)(b) did not wish to provide a statement to the CCRB and § 87(2)(b)'s attorney stated that § 87(2)(b) did not wish to be involved in this complaint.

Both PO McNally and PO Tarver were consistent in that they never made physical contact with § 87(2)(b) and stated that their entry into § 87(2)(b)'s home was incidental of § 87(2)(b) pulling PO Tarver inside.

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be closed as ***unsubstantiated***.

Allegation E- Force- Police Officer Richard Tarver used physical force against § 87(2)(b)

Allegation F- Force- Police Officer Brandon McNally used physical force against § 87(2)(b)

By all accounts and as confirmed by the video footage for this incident, § 87(2)(b) who is 6'6" tall and 240lbs., in stature, actively resisted PO McNally and PO Tarver's (both 5'8" tall) attempts to handcuff him by pushing the officers, refusing to comply with their orders and not giving them his hands as they moved between various areas on the main floor of the house ending at the stairwell. It is undisputed by officer statements and video footage that § 87(2)(b) placed PO McNally in a chokehold. § 87(2)(b) indicated that he did not recall taking such action even after reviewing the video footage. It is undisputed that the extent of the physical force used by PO Tarver and PO McNally against § 87(2)(b) consisted of grappling and attempting to pull his arms behind his back.



2016-06-10_14-54-15.mp4

Patrol Guide Procedure 203-11 states that officers are required to use the minimum necessary force to overcome resistance and affect an arrest (Board Review 12).

§ 87(2)(g)

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It is therefore recommended that **Allegations E and F** be closed as *exonerated*.

Allegation G- Force- Police Officer Nestor Martinez used physical force against § 87(2)(b)

During their continued physical struggle with § 87(2)(b) at two different points, PO Tarver and PO McNally requested additional police assistance to the scene. As captured by the video footage and confirmed by all parties, PO Nestor Martinez entered the house, while § 87(2)(b) was on the lower portion of the stairs of his home holding onto the railing with his left hand. There was very limited space for movement. PO Martinez grabbed § 87(2)(b)'s left forearm and pulled it off of the railing and passed it to PO Tarver to hold. § 87(2)(b) then grabbed the railing with his right hand, pulled free from PO Tarver's grip of his left arm, and held back onto the stairway railing with both hands. PO Martinez yelled at § 87(2)(b) to, "Get off" twice as he again tried to pull § 87(2)(b)'s forearms to release his grip from the railing. PO Martinez then struck § 87(2)(b) once on the side of the head with his forearm while yelling, "Get off." § 87(2)(b) continued to hold onto the railing. PO Martinez again pulled at § 87(2)(b)'s forearms to release his grip to no avail. PO Martinez then struck § 87(2)(b) four additional times on the side of the head with his forearm, the momentum of these forearms strikes causing § 87(2)(b)'s head to hit the side wall. During the first two of the four strikes, PO Martinez yelled, "Off, off." PO Martinez then pulled at § 87(2)(b)'s left arm, releasing his left hand's grip off of the railing. PO Martinez then held on to the one arm and struck § 87(2)(b) again with his forearm on the side of § 87(2)(b)'s head. § 87(2)(b) released his arm from PO Martinez, grabbing hold of the railing with both hands. Later in the incident, after Sgt. Mikowski (see Allegation J) discharged her pepper spray against § 87(2)(b) followed by PO Piccininni's physical interaction with § 87(2)(b) (see Allegation K), PO Martinez grabbed § 87(2)(b) by the hair and pulled at it, and tried to pry § 87(2)(b)'s hands off of the railing which caused § 87(2)(b) to release his grip from the railing, and he was ultimately handcuffed.



2016-06-09_15-32-36.mp4

PO Martinez (Board Review 08) confirmed the physical actions he took as captured in the video footage and explained that he utilized the strikes to § 87(2)(b)'s side of the head in order to stun him, in hopes of him releasing his grip off of the railing.

Patrol Guide Procedure 203-11 states that officers are required to use the minimum necessary force to overcome resistance and affect an arrest (Board Review 12).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as *exonerated*.

Allegation H- Force- Police Officer Matthew Levy used physical force against § 87(2)(b)

As PO Martinez struck § 87(2)(b) who continued to actively resist (see above), PO Levy and Sgt. Mikowski entered and were positioned within a couple of feet of § 87(2)(b). As captured by the video footage, PO Levy (Board Review 09) reached behind PO Martinez and grabbed § 87(2)(b) by his shirt and arm to pull him away from the railing which proved ineffective. PO Levy then grabbed § 87(2)(b) by the hair and lifted his head up, positioning it as Sgt. Mikowski discharged her pepper spray.



2016-06-10_10-22-33.mp4

Patrol Guide Procedure 203-11, states that officers are required to use the minimum necessary force to overcome resistance and affect an arrest (Board Review 12).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as *exonerated*.

Allegation I- Discourtesy- Police Officer Matthew Levy spoke discourteously to § 87(2)(b)

Allegation L- Force- Police Officer Paul Piccininni spoke discourteously to § 87(2)(b)

While PO Levy pulled § 87(2)(b)'s hair, the video also captured PO Levy yelling, "Mace this fucking guy. Mace him. Just fucking mace him. Keep macing him." PO Levy's voice can also be heard saying "Get the fuck up" while he is pulling § 87(2)(b) upwards from behind him, and later, "Get on the fucking ground," while § 87(2)(b) is being handcuffed.

Additionally, while PO Picininni is seen delivering, what appeared to be approximately six strikes, the video captured commands of, "Put your hands behind your back," followed by, "Motherfucker, put your hands behind your back."



2016-06-10_14-28-42.mp4

NYPD Patrol Guide Procedure 203-09 states that officers are required to be courteous and respectful when dealing with the public (Board Review 11).

In limited circumstances, profanity is permissible where the officer has resorted to such language in order to forcefully make a point or to gain compliance with an order in the heat of a highly dangerous situation, PD v. Matias and Bitchachi, OATH Index Nos. 1996/00 and 1997/00 (September 8, 2000) (Board Review 12).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations I and L** be closed as ***exonerated***.

Allegation J- Force- Sergeant Marianne Mikowski used pepper spray against § 87(2)(b)

It is undisputed that Sgt. Mikowski used pepper spray against § 87(2)(b). As discussed above, § 87(2)(b) was actively resisting arrest by holding onto the railing of the stairs, and regripping it once officers successfully removed a hand. As seen by the video, strikes to the head, pulling of his arms, and verbal commands all preceded the use of pepper spray. As addressed in Allegation H, PO Levy pulled § 87(2)(b)'s head upwards to in order to steady § 87(2)(b)'s head and give Sgt. Mikowski a clear target during the discharged of the pepper spray.

When the pepper spray was discharged, it is apparent that the canister was closer than three feet from § 87(2)(b)'s face.



2016-06-10_14-22-56.mp4

Patrol Guide Procedure 212-95 states that O.C. Pepper spray may be used in arrest or custodial restraint situations where physical presence and/or verbal commands have not been, or would not be effective in overcoming physical resistance. The procedure further lists that officer's discharge the spray from a distance of three feet. The NYPD Police Student's Guide regarding Use of Force states that OC spray should be used from a distance of several feet and

advises that it should be avoided in situations where officers are in contact with the perpetrator since they can be ultimately contaminated (Board Review 12).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is therefore recommended that **Allegation J** be closed as *exonerated*.

Allegation K- Force- Police Officer Paul Piccininni used physical force against § 87(2)(b)

Pursuant to Sgt. Mikowski's discharge of the pepper spray, as captured by the video footage, § 87(2)(b) continued to actively resist and hold on to the railing. PO Piccininni confirmed that he struck § 87(2)(b) with closed fists, numerous times during this struggle on his back between his shoulder blades (Board Review 11). It is unclear from the video footage where PO Piccininni struck § 87(2)(b) and § 87(2)(b) was not able to clarify where he was struck. PO Piccininni punched § 87(2)(b) approximately six times coupled with two commands, "Put your hands behind your back" and "Motherfucker, put your hands behind your back (the latter statement was addressed within Allegation L)." PO Piccininni then continued to give verbal commands of "Stop resisting." At this time, PO Levy pulled § 87(2)(b)'s hands off of the railing and he was successfully handcuffed as addressed in Allegation H.



2016-06-10_14-26-16.mp4

According to Patrol Guide Procedure 203-11, officers are required to use the minimum necessary force to overcome resistance and affect an arrest (Board Review 12).

§ 87(2)(g)

It is therefore recommended that **Allegation K** be closed as *exonerated*.

Allegation M- Force- An officer restricted § 87(2)(b) **s breathing.**

Allegation N- Discourtesy- An officer spoke discourteously to § 87(2)(b)

Allegation O- Force- An officer hit § 87(2)(b) **s head against the ground.**

It is therefore recommended that **Allegations M, N, and O** be closed as ***Officer(s) Unidentified.***

Squad: 4

Investigator:	_____	Arthur Albano	06/10/2016
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date